

	Motion to Amend and Vacate Judgment	The filing of a proof of service that complies with the statutory standards creates a rebuttable presumption that the service was proper. (<i>Floveyor Internat., Ltd. v. Superior Court</i> (1997) 59 Cal.App.4th 789, 795.) Plaintiff filed a proof of substitute service on April 15, 2024. (ROA 19.) Defendant has failed to rebut the presumption of valid substitute service. Thus, Defendant’s Motion is denied. Defendant Christopher Michael Taylor’s Motion to Amend the Judgment is DENIED as moot. Plaintiff filed an acknowledgment of full satisfaction of judgment on June 23, 2026. Thus, the judgment is no longer at issue and Defendant’s Motion to amend the judgment is moot.
8	Shu v. Hyundai Motor America 2026-01540769 Motion to Compel Arbitration	Defendant Hyundai Motor America’s (“HMA”) motion to compel plaintiff Connie Shu to arbitrate her claims and to stay this action pending arbitration is GRANTED. HMA’s Request for Judicial Notice is GRANTED. HMA moves to compel arbitration under the: (1) Owner’s Handbook & Warranty Information (“Warranty”); and (2) Bluelink Connected Services Agreement (“CSA”). Existence of valid agreement to arbitrate: Plaintiff purchased a 2022 Hyundai IONIQ 5 (“Subject Vehicle”) on February 5, 2022. (Complaint, ¶ 6.) Plaintiff received a Warranty as part of the purchase which includes an agreement to arbitrate in Section 4. (Ameripour Decl., ¶ 3, Ex. 3, p. 12.) Plaintiff contends the Warranty was neither signed nor meaningfully negotiated by Plaintiff and it lacks the mutual assent required to form a binding arbitration agreement. (Opp., 2:8-9.) In a recent decision, <i>Kostandian v. American Honda Motor Co.</i> (2026) 120 Cal.App.5th 872 [2026 WL 1495175] (<i>Kostandian</i>), the Second Appellate District, Division Two, rejected the argument that the arbitration provision in a warranty booklet is not an agreement. Specifically, the court of appeal concluded appellants met their initial burden of establishing an arbitration agreement in the warranty booklet as to American Honda Motor because “[a]ppellants presented a copy of the agreement, stated the relevant terms thereof verbatim, and provided the necessary allegations. The burden therefore shifted to respondent to dispute the existence of an arbitration agreement as to American Honda Motor.” (<i>Id.</i> at *6.) In finding respondent failed to dispute he had an existing arbitration agreement with American Honda Motor in the warranty booklet, the court of appeal stated that “While respondent here posits there was no mutual assent since he did not receive the warranty booklet until after the sale was completed, no evidence was

presented supporting this assertion. Respondent provided no declaration stating when he received the warranty booklet. Even if respondent had provided such statements, they would be at odds with his signings confirming he received the vehicle's warranty information as well as his pleadings indicating 'representations were made [to respondent] in Manufacturer's New Vehicle Limited Warranty.' In addition, respondent does not argue he had no reason to believe he had a contractual relationship with American Honda Motor. Thus, respondent failed to meet his burden of proof in disputing the existence of an arbitration agreement with American Honda Motor." (*Id.* at *7.)

Similarly, here, Plaintiff has failed to meet her burden of proof in disputing the existence of an agreement to arbitrate in the Warranty. Plaintiff has not submitted a declaration stating she did not receive the Warranty. Instead, the Complaint expressly states: "Along with the acquisition of the Vehicle, Plaintiff received written warranties and other express and implied warranties including, but not limited to, warranties from Defendants that the Vehicle and its components would be free from all defects in material and workmanship; that the Vehicle would pass without objection in the trade under the Contract description; that the Vehicle would be fit for the ordinary purposes for which it was intended; that the Vehicle would conform to the promises and affirmations of fact made; and that Defendants would perform any repairs, alignments, adjustments, and/or replacements of any parts necessary to ensure that the Vehicle was free from any defects in material and workmanship." (Complaint, ¶ 7.) Further, as in *Kostandian*, Plaintiff has not submitted a declaration and does not argue she had no reason to believe she had a contractual relationship with Defendant. Therefore, HMA has shown the existence of an agreement to arbitrate in the Warranty.

Agreement encompasses the dispute at issue:

The agreement to arbitrate applies to: "any claim or disputes between us ... related to or arising out of your vehicle purchase, advertising for the vehicle, use of your vehicle, the performance of the vehicle, any service relating to the vehicle, the vehicle warranty, representations in the warranty, or the duties contemplated under the warranty . . ." (Ameripour Decl., ¶ 3, Ex. 3, p. 12.) Therefore, the agreement to arbitrate contained in the Warranty is broad enough to encompass Plaintiff's claims.

Defenses to the Arbitration Agreement:

Plaintiff also argues the agreement to arbitrate in the Warranty is unenforceable because it is unconscionable. Procedural and substantive unconscionability "must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability." (*Armendariz v. Foundation Health*

		<i>Psychcare Servs., Inc.</i> (2000) 24 Cal.4th 83, 114.) However, they need not be present in the same degree. (<i>Ibid.</i>) A sliding scale approach is used and the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required. (<i>Ibid.</i>) Plaintiff has shown there is some minimal degree of procedural unconscionability but has failed to show the agreement to arbitrate is substantively unconscionable. Since the Court grants the motion to compel arbitration based on the arbitration agreement contained in the Warranty, the court does not reach HMA's argument that it can compel arbitration pursuant to the CSA. The Court will set a post-arbitration status conference for a future date to be determined on July 6, 2026. The parties are ORDERED to file a Status Report 5 days prior. The Case Management Conference set for 8/3/26 at 8:30 AM in Department C15 is vacated. Moving Defendant to give notice.
9	Tsirsis v. Pacific Hospital Long Beach 2021-01234325 Motion for Summary Judgment/Adjudication.	Defendant Dr. Ian Armstrong's Motion for Summary Judgment/Adjudication is CONTINUED to 8/3/26. This case was filed on 12/2/21 and Plaintiff has had approximately four years and six months to obtain and present evidence supporting his claims against Defendant. Nonetheless, in light of California law favoring adjudication on the merits, the Court will give Plaintiff a final opportunity to withdraw the deemed admissions and present admissible evidence in support of his opposition to summary judgment. The motion is continued to 8/3/26, to be heard after Plaintiff's motion to withdraw the admissions. Plaintiff shall file and serve a supplemental brief in opposition, which must be supported by a separate statement and admissible evidence, no later than 7/24/26. (Code Civ. Proc. § 437c; California Rule of Court 3.1350(e).) Defendant may file and serve a supplemental response no later than 7/28/26. The supplemental memoranda of points and authorities shall not exceed five pages each.